



DEPARTMENT OF HUMAN SERVICES

Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind

RULE MANUAL 27, COMMISSION FOR THE DEAF, HARD OF HEARING, AND DEAFBLIND

12 CCR 2516-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

STATEMENT OF BASIS AND PURPOSE, FISCAL IMPACT, AND SPECIFIC STATUTORY AUTHORITY OF REVISIONS MADE TO STAFF MANUAL VOLUME 27 (12 CCR 2516-1)

In creating a new manual for the Colorado Commission for the Deaf and Hard of Hearing (CCDHH), sections 27.100 through 27.191 were added as adopted following publication at the 6/6/2003 State Board meeting, with an effective date of 8/1/2003 (Rule-making# 03 3 26-1). Statement of Basis and Purpose, fiscal impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Performance Improvement, Boards and Commissions Division, State Board Administration.

Revisions to Sections 27.120 and 27.140 were adopted following publication at the 5/7/2004 State Board meeting, with an effective date of 7/1/2004 (Rule-making# 04-3-1-1). Statement of Basis and Purpose, fiscal impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Performance Improvement, Boards and Commissions Division, State Board Administration.

Addition of Sections 27.200-27.300 were final adoption following publication at the 9/7/2007 State Board meeting (Rule-making# 07-6-21-1), with an effective date of 11/1/2007. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Performance Improvement, Boards and Commissions Division, State Board Administration.

Revision of Sections 27.100 through 27.191 were final adoption following publication at the 2/1/2008 State Board meeting (Rule-making# 07-10-1-1), with an effective date of 4/1/2008. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Boards and Commissions Division, State Board Administration.

Revision of Sections 27.100 through 27.191 and Sections 27.200 through 27.300 were final adoption following publication at the 2/5/2010 State Board meeting (Rule-making#s 09-9-17-1 and 09-10-22-2), with an effective date of 4/1/2010. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Division of Boards and Commissions, State Board Administration.

Addition of Sections 27.400 through 27.480 were final adoption following publication at the 3/5/2010 State Board meeting (Rule-making# 09-10-22-1), with an effective date of 5/1/2010. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Division of Boards and Commissions, State Board Administration.

27.100 COMMUNICATIONS TECHNOLOGY PROGRAM (CTP)

27.110 INTRODUCTION

The Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind administers and discharges funding as appropriated by the general assembly for the administration of a communications technology program (CTP), to distribute communications technology to qualified residents of Colorado.

27.120 DEFINITIONS

“Anniversary date” means the same date, but on subsequent years, that the applicant was approved for the Communications Technology Program.

“Applicant” means a person who applies to receive communications device(s) under the auspices of the Communications Technology Program.

“Application” means the official paperwork approved by the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind used for the Communications Technology Program.

“Approved date” means the date that all supporting documentation for the application is received and verified for acceptance by the Communications Technology Program.

“Certification” means professional verification of the applicant’s hearing acuity.

“Certifying professional” means those individuals who have been officially recognized by the Communications Technology Program to verify the applicant’s hearing acuity, as indicated in Section 27.130.

“Commission” means the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind (CCDHHDB), created pursuant to Section 26-21-104, C.R.S.

“Communications technology” means any communication device or application utilizing radio, television, cellular phone, computer and network hardware and software, satellite, cable, broadband systems, or similar medium and the services and applications associated with those mediums, including video and teleconference services pursuant to section 26-21-103(4), C.R.S.

“Device” means any tool or application that provides communications access.

“Fiscal constraint” means when seventy-five percent (75%) of the appropriated program funds have been disbursed or encumbered.

“Fraud” means the intentional deception and misreporting of information in order to obtain telecommunications equipment through this program.

“Natural disaster” means an event of nature such as tornadoes, earthquakes, blizzards, floods, forest fires, dust storms, avalanches, hailstorms, and lightning strikes.

“Resident” means an individual who lives in the State of Colorado as his/her primary residence.

“Tool” means any device or application that provides communications access.

“Vendor” means a company or individual who has successfully bid with the State of Colorado for the purposes of the Communications Technology Program and has received such designation.

“Wireless device” means a device that enables deaf, hard-of-hearing or deafblind individuals to access a wireless network.

27.130 ELIGIBILITY FOR THE COMMUNICATIONS TECHNOLOGY PROGRAM

To be eligible for communications devices under the Communications Technology Program, the applicant shall meet all of the following eligibility criteria:

- A. The applicant must be a legal resident of the state of Colorado and provide a valid address on the application.
- B. An applicant's minimum age for a wireless device is thirteen (13) years old. The minimum age for all other devices is five (5) years old. The applicant must be able to benefit from and use the equipment for its intended communications technology purpose.
- C. If the applicant is under eighteen (18) years of age; parents or guardians shall apply on behalf of child/minor and assume full responsibility for the device(s).
- D. If the applicant is eighteen (18) years of age or older and has a guardian; the guardian shall apply on behalf of the applicant and assume full responsibility for the device(s).
- E. The applicant must be deaf, hard of hearing or deafblind. This determination must be made at the applicant's expense by one of the following:
 - 1. A licensed physician or medical professional;
 - 2. A licensed audiologist;
 - 3. A Licensed Speech-Language Pathologist;
 - 4. A Service professional from a public or private agency that serves deaf, hard of hearing or deafblind.
- F. The applicant's household income must be less than 400% of the Federal Poverty Guidelines (FPG) based on family size as indicated by the United States Department of Health and Human Services (HHS). FPG refers to figures set by the HHS annually. These figures, based on gross yearly income levels for corresponding household size, are included in the below table. Effective January 12, 2024, yearly gross income levels, for one hundred percent (100%) and four hundred percent (400%) of the FPG for the corresponding household size are as follows:

Family Size	100% Federal Poverty Guidelines	400% Federal Poverty Guidelines
1	\$15,060	\$60,240
2	\$20,440	\$81,760
3	\$25,850	\$103,280
4	\$31,200	\$124,800
5	\$36,580	\$146,320
6	\$41,960	\$167,840
7	\$47,340	\$189,360
8	\$52,720	\$210,880
Each Additional person	\$5,380	\$21,520

The applicant must demonstrate proof of household annual gross income by providing a copy of his/her Federal Income Tax return (front page only), a Social Security Income award letter or other proof approved by the CTP Manager.

Applicants shall be placed on a waiting list during times of fiscal constraint.

27.140 APPLICATION PROCESS

The Communications Technology Program shall provide assistance in completing forms when requested by an applicant.

The applicant shall determine what accommodations are needed to ensure effective communications access based on demonstration and consultation. CTP may verify and certify the request and require further documentation and justification.

- A. Information about how to obtain and submit an application, both paper and electronic, may be found through the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind office, its website, or designated public and private agencies.
- B. The Communications Technology Program shall review all applications on a non-discriminatory basis to determine whether:
 - 1. All of the information is completed on the application.
 - 2. The applicant has provided a valid street address. If a P.O. Box is used, then a physical address of the location where the applicant resides must be provided.
 - 3. The application has the applicant's original or electronic signature.
 - 4. The application includes all required documentation.

27.141 Approved Applications

Applicants who meet all of the eligibility requirements will be notified by email or mail of their application approval within 60 days of receipt.

Eligible applicants shall be awarded program participation on a first-come, first-served non-discriminatory basis, in accordance with the approved date.

27.142 Pending Approved Applications

During times of fiscal constraint, applications shall be accepted and held as pending until such time as funds become available. Such applications will be pending up to twelve (12) months. If after this time period funds are still not available, then a new application must be submitted. Applicants will be notified that they need to reapply.

27.143 Denied Applications

- A. Denial

If the applicant is ineligible to participate in the program, the applicant shall be given written justification for the determination within sixty (60) calendar days of the denial determination.
- B. The following are reasons for denying an application:

1. The applicant does not meet the eligibility requirements as established.
2. The applicant has received communications technology from the Communications Technology Program within the preceding four (4) years.
3. The applicant has negligently or willfully damaged the communications device(s) received from the Communications Technology Program or violated other provisions of the administrative regulations governing the Communications Technology Program.
4. The applicant fails to provide a police report of a stolen device or refuses to cooperate with the police investigation or in the prosecution of the suspect, including the refusal to testify in court when asked or subpoenaed to do so.
5. The applicant is found negligent in a police report of a stolen device, such as doors to the house or car left unlocked or unattended.
6. The applicant has lost or sold the communications technology.

C. Reapplication

Any applicant who has been denied participation may reapply if, due to a change in conditions, the eligibility criteria as delineated in this document are met.

27.144 Dispute Resolution Process

In order to resolve disputes between the Communications Technology Program and applicants/recipients, the Commission shall adopt procedures for the resolution of disputes consistent with this section. The procedures shall be designed to establish a simple non-adversarial format for the informal resolution of disputes.

27.150 DEVICE SELECTION

The approved applicant is responsible for selecting the appropriate communications device(s). If the communications device(s) that is currently provided by the Communications Technology Program does not meet the recipient's needs:

- A. The recipient may make a special request for an appropriate device that better meets his/her needs.
- B. The recipient is responsible for the maintenance and repair of the device(s) selected through the Communications Technology Program. All communications technology will come with a warranty.

27.151 Replacing the Communications Technology Device

A recipient may apply to replace the original communications technology device if:

- A. The device is damaged through natural disaster;
- B. There is a change in the recipient's hearing or vision acuity;
- C. New communications technology has become available through the Communications Technology Program which the CTP Manager determines to be more appropriate to the recipient's communications needs; or,

- D. The identified anniversary date has passed and the recipient has had the communications technology for more than four (4) years.

27.152 Pending Replacement Applications

During times of fiscal constraint, applications for replacement shall be accepted and held as pending until such time as funds become available.

27.153 Damaged Device Due to Natural Disasters

- A. The recipient must send the device(s) directly to the vendor that sent the device.
- B. The manufacturer or vendor will certify that the equipment cannot be repaired due to a natural disaster.

If a device is stolen, for the purposes of program recordkeeping, the recipient shall:

- A. Notify local police within fifteen (15) calendar days of the theft.
- B. Forward a copy of the police report to Communications Technology Program within five (5) working days of the date the theft was reported.

27.160 VENDOR REQUIREMENTS

All vendors shall follow State procurement requirements.

27.161 Vendor Registration

Vendors seeking to contract with the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind for any Communications Technology Program function must register for the Bid Information and Distribution System (BIDS) with the State Purchasing Office and be in accordance with the State Procurement Rules (1 CCR 101- 9) and these CTP rules. Vendors submit all information required by these rules to the Commission in order to be reimbursed. Vendors must register with the Secretary of State as a for-profit or not-for-profit business in the State of Colorado.

The following minimum standards shall apply to vendor participation in the Communications Technology Program:

- A. Vendors shall submit documentation to the Commission that the vendor has registered with the State Purchasing Office and the Secretary of State's Office as required in Section 27.161.
- B. The Commission must receive all required registration information before a vendor will be reimbursed. Reimbursements will be made by electronic funds transfer into the vendor's registered bank account.
- C. If the submitted registration information is incomplete, the Commission will notify the vendor of any deficiency, if it is able to make contact based on the information provided.
- D. Vendors are responsible for updating registration information. The Commission is not responsible for any loss resulting from incorrectly supplied registration information.
- E. Vendors must submit vendor registration information prior to any sales transactions in order to ensure payment.

- F. In the event that a vendor is suspended or disbarred from doing business in the State of Colorado or with the Federal government, the Commission shall notify the vendor that it is no longer eligible to receive reimbursements under this program.

27.170 FRAUD

If a recipient obtained communications technology under false premises or through intentional misrepresentation of facts on the Communications Technology Program application form, then the Communications Technology Program shall demand return of the equipment immediately. Upon demand, the recipient shall return the specified Communications Technology Program device(s). A determination of fraud will result in permanent disqualification from the program.

27.180 CONFIDENTIALITY

All applicant and recipient information shall be kept confidential in compliance with the Colorado Human Services Code (Section 26-1-114, C.R.S.). This is to prevent exploitation of applicants and recipients, to eliminate embarrassment to them, and is in recognition of their rights as self-determining individuals who are not limited because of their need for communications technology.

27.181 Information Not Considered to be Confidential for Data Purposes [Rev. eff. 4/1/10]

General program information not identified with any individual is not confidential and may be released for any purpose. This includes:

- A. Total expenditures;
- B. Number of applicants and/or recipients;
- C. Statistical data obtained from studies;
- D. Social data obtained from studies, reports, or surveys;
- E. Expenditures by category of equipment;
- F. Expenditures for administration;
- G. Sum of all program expenditures.

27.190 ADMINISTRATION

27.191 Quarterly Report

The CTP Manager shall provide the CCDHHDB Director and Commissioners a quarterly report on the operation of the Communications Technology Program. The report shall be due the 30th following the last month of the quarter, provide:

- A. The number of persons served;
- B. The number of each type of device distributed;
- C. The expenditures of the program activities;
- D. Discussion of any major policy or operational issues;
- E. Suggestion(s) for program changes that do not require legislative action; and,

F. Suggestions or proposals for legislative changes in the program.

27.200 LEGAL AUXILIARY SERVICES PROGRAM

The Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind administers the Legal Auxiliary Services (LAS) program to provide access to effective communication for deaf, hard of hearing, and deafblind individuals in court/legal settings, including the State Court System and state administrative proceedings.

LAS services include providing court and legal-qualified sign language interpreting and live, human-generated captioning services for all state court and administrative proceedings. LAS issues specific Court/Legal credentials to qualified Auxiliary Services Providers and publishes a Referral Resource List for use by law enforcement, prosecutorial personnel, and other appointing authorities pursuant to sections 13-90-204 and 205.

These rules implement the provisions of sections 13-90-201 et seq., 13-71-137, and 26-21-106(4), C.R.S.

27.210 DEFINITIONS

“Appointing Authority” means the presiding officer or similar official of any court, board, commission, agency, or licensing or law enforcement authority of the state pursuant to section 13-90-202, C.R.S.

“Assistive Listening Device” (ALD) means a form of auxiliary aid working either with a hearing aid or cochlear implant, or alone, to improve hearing acuity for all interactions.

“Auxiliary Services” means qualified interpreters, Communication Access Realtime Translation (CART) providers, assistive listening devices/systems, or other services that assist in effective communication with a person who is deaf, hard of hearing, or deafblind pursuant to section 13-90-202(3), C.R.S.

“Auxiliary Services Provider” means a qualified interpreter or qualified CART provider to provide services under these Legal Auxiliary Services (LAS) rules.

“Commission” means the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind (CCDHHDB) pursuant to section 13-90-202(4), C.R.S.

“Communication Access Realtime Translation” (CART) means a speech-to-text translation service for the deaf, hard of hearing, or deafblind.

“Deaf, hard of hearing, or deafblind” means a person who has a functional hearing loss of sufficient severity to prevent aural comprehension, even with the assistance of hearing aids, pursuant to section 13-90-202(6), C.R.S. DeafBlind individuals exist on a continuum, ranging from no vision and/or hearing to varied combinations of usable hearing and/or vision, that presents difficulty in routinely accessing information.

“Effective Communication” means those methods of communication that are individualized and culturally appropriate to a person who is deaf, hard of hearing, or deafblind so that the person can easily access all auditory information pursuant to section 13-90-202(7), C.R.S.

“Legal Auxiliary Services Handbook” means the Colorado Commission for the Deaf, Hard of Hearing, and Deafblind Legal Auxiliary Services Handbook (2022) which is hereby incorporated by reference. No later additions or amendments are incorporated. The Legal Auxiliary Services Handbook is available at ccdhhdb.com/becomeLAS and is also available for public inspection at the Colorado Department of Human Services, Colorado Commission for the Deaf, Hard of Hearing, and Deafblind, 1575 Sherman Street, Garden Level, Denver, Colorado 80203, during regular business hours.

“Qualified Interpreter” means a person who has a valid certification of competency accepted by the Commission and includes, but is not limited to, oral interpreters, sign language interpreters, and intermediary interpreters pursuant to section 13-90-202(8), C.R.S.

“Referral Resource List” is a list of qualified Court/Legal interpreters and CART providers available for law enforcement and prosecutorial personnel for effective communication for arrest and witness/victim interview situations as required under sections 13-90-204(1)(d) and (f) and 13-90-205, C.R.S. LAS does not arrange for such services for law enforcement and prosecutorial personnel but publishes and maintains the list for their use.

“State Court System” means the system of courts, or any part thereof, established pursuant to Articles 1 to 9 of Title 13, C.R.S., and Article VI of the State Constitution. “State Court System” shall not include the municipal courts or any part thereof.

“Status I or II Court/Legal Interpreter” means an interpreter who has been credentialed by LAS as qualified for court and legal settings.

“Status I or II Court/Legal CART Provider” means a CART provider who has been credentialed by LAS as qualified for court and legal settings.

27.220 APPOINTMENT OF AUXILIARY SERVICES PROVIDERS AND PUBLISHING A REFERRAL RESOURCE LIST

LAS will coordinate and pay for all qualified Auxiliary Services Providers when requested by an Appointing Authority. In addition, LAS will publish and maintain a Referral Resource List for use by law enforcement and prosecutorial personnel.

- A. LAS shall determine the combination of services needed on a case-by-case basis in order to achieve effective communication between all parties.
- B. LAS shall arrange and pay for auxiliary services in the following instances:
 - 1. When a deaf, hard of hearing, or deafblind person is present and participating as the principal party of interest or witness at any state court civil or criminal proceeding, including court-ordered or court-provided probation, alternative dispute resolution, mediation, arbitration, pre-sentence interviews, or treatment.
 - 2. When a deaf, hard of hearing, or deafblind person is present and participating as the principal party of interest or witness at any state administrative, commission, or agency hearing, or hearing of a licensing authority of the state.
 - 3. When a person who is deaf, hard of hearing, or deafblind is involved in any stage of grand jury or jury proceedings as a potential or selected juror.
 - 4. When a juvenile whose parent(s) or legal guardian(s) are deaf, hard of hearing, or deafblind is brought before a state court for any reason.
 - 5. For meetings at the courthouse between an attorney and a client when the meeting is an extension of a court appearance (i.e., immediately before or after the appearance).
- C. The Commission may coordinate and pay for qualified Auxiliary Services Providers for deaf, hard of hearing, and deafblind individuals who are not a principal party of interest when practicable and given consideration of advance notice and availability of service providers.

- D. LAS shall maintain a publicly available Referral Resource List of qualified Auxiliary Services Providers for use by appointing authorities, including law enforcement and prosecutorial personnel. The list shall contain the names of interpreters and CART providers who are qualified to work in court/legal settings. Law enforcement and prosecutorial personnel shall utilize the Referral Resource List to secure necessary auxiliary services pursuant to section 13-90-205(2), C.R.S.

27.230 QUALIFICATIONS OF AUXILIARY SERVICES PROVIDERS

Auxiliary Services Providers must meet certain requirements to provide interpreting and CART services for LAS.

Providers must hold a Status I or II Court/Legal credential and pass initial and subsequent Judicial Department background checks to be eligible for Court/Legal assignments. Status IV providers are eligible for all community assignments.

LAS shall review each Auxiliary Services Provider's Status I, II, or IV designation annually based upon the rule requirements and keep an updated Referral Resource List. Please refer to the Legal Auxiliary Services Handbook for more information about LAS policies and procedures.

A. **Qualified Interpreters**

No qualified interpreter shall be categorized as a Status I or II Court/Legal Interpreter or be placed on a Referral Resource List with the Commission without first making an application and receiving a determination from LAS that they are qualified under Statuses I, II, and/or IV below.

Interpreting services may be provided onsite or virtually. Every effort will be made to provide optimal communication access.

Status I interpreters are preferred providers for all legal and court assignments.

1. **Status I: Court/Legal Interpreter**

- a. Certified Deaf Interpreters holding a current RID Certified Deaf Interpreter (CDI), BEI Intermediary Levels IV or V, or successor certification and who have passed the National Center for State Courts (NCSC) written exam

Holders of this certificate are recommended for a broad range of assignments where an interpreter who is deaf or hard of hearing would be beneficial.

- 1) Initial Status I designation: interpreters in this category are required to complete 65 hours of training specific to legal interpreting and a minimum of 50 hours of mentoring pursuant to the Legal Auxiliary Services Handbook, to attain a Status I designation. In addition, they are required to have passed the National Center for State Courts (NCSC) written exam.

- A. Compliance: current Status I Certified Deaf Interpreters must come into full compliance with the NCSC written exam requirement by June 30, 2025, in order to retain the Status I designation. Anyone who does not pass the NCSC exam by that date will be moved to Status II. Extensions may be granted on a case-by-case basis.

- B. Court/Legal Interpreters new to the Colorado State Court System who completed the required number of mentoring hours out-of-state must complete a Legal Auxiliary Services orientation and a minimum of ten hours of successful teaming with Colorado Status I or II Court/Legal Interpreters prior to being granted Status I, pursuant to the Legal Auxiliary Services Handbook.
 - 2) Maintenance of Status I designation: interpreters in this category must maintain current certification and complete 2.0 (20 clock hours) Continuing Education Units (CEUs) in legal and/or court-related topics during their CEU cycle(s), pursuant to the Legal Auxiliary Services Handbook. The 2.0 of legal and/or court-related CEUs must be approved as such by the certification body.
 - b. Certified Hearing Interpreters holding a current Registry of Interpreters for the Deaf (RID) Specialist Certificate: Legal (SC:L), Board for Evaluation of Interpreters (BEI) Court Interpreter, or successor certification
 - 1) Initial Status I designation: holders of a current RID Legal SC:L certification and/or BEI Court Interpreter certification are not required to complete the Legal Auxiliary Services legal training and mentorship program to attain a Status I designation.
 - A. Court/Legal interpreters new to the Colorado State Court System must complete a Legal Auxiliary Services orientation and a minimum of ten hours of successful teaming with Colorado Status I or II Court/Legal Interpreters prior to being granted Status I, pursuant to the Legal Auxiliary Services Handbook.
 - 2) Maintenance of Status I designation: each SC:L or BEI Court Interpreter certification holder must maintain current certification.
- 2. Status II: Court/Legal Interpreter
 - a. Certified Deaf Interpreters

Holders of this certificate are recommended for a broad range of assignments where an interpreter who is deaf or hard of hearing would be beneficial.

Interpreters holding a current RID Certified Deaf Interpreter (CDI), BEI Intermediary Levels IV OR V, or successor certification are eligible to attain a Status I or II designation if they comply with the following:

 - 1) Initial Status II designation:
 - A. Prerequisite: interpreters must complete the community interpreting experience requirement set forth in the Legal Auxiliary Services Handbook before beginning legal interpreting training.
 - i. Interpreters in this category are required to complete 65 hours of training specific to legal interpreting and a minimum of 50 hours of mentoring pursuant to the Legal Auxiliary Services Handbook to attain a Status II designation.

- a. Compliance: current Status II interpreters must come into full compliance with the RID or BEI certification requirement by June 30, 2025, to retain the Status II designation. Not doing so will result in loss of the Status II designation. Extensions may be granted on a case-by-case basis.
 - ii. Interpreters from out-of-state who are experienced in court/legal settings but are new to the Colorado State Court System are eligible to attain a Status II designation by demonstrating that they have sufficient experience in court/legal settings, have completed a minimum of 65 hours of training specific to legal interpreting, and have completed a minimum of 50 hours of mentoring. They must complete a Legal Auxiliary Services orientation and a minimum of 20 hours of successful teaming with current Colorado Status I and II Court/Legal Interpreters prior to being granted Status II, pursuant to the Legal Auxiliary Services Handbook. Exceptions may be made on a case-by-case basis.
- 2) Maintenance of Status II designation: interpreters in this category must maintain current certification and complete 4.0 (40 clock hours) of Continuing Education Units (CEUs) in legal and/or court-related topics during their CEU cycle(s), pursuant to the Legal Auxiliary Services Handbook. The 4.0 of legal and/or court-related CEUs must be approved as such by the certification body.
- 3) Moving from Status II to Status I: interpreters holding a current Status II designation may apply for a Status I designation upon meeting the Status I written test requirements, pursuant to the Legal Auxiliary Services Handbook.
- b. Certified Hearing Interpreters with other certifications

Interpreters holding a current Registry of Interpreters for the Deaf (RID), Board for Evaluation of Interpreters (BEI) Advanced or Master, or successor certification are eligible to attain a Status II designation if they comply with the following:

 - 1) Initial Status II designation:
 - A. Prerequisite: interpreters must complete the community interpreting experience requirement set forth in the Legal Auxiliary Services Handbook before beginning legal interpreting training.
 - i. Interpreters in this category are required to complete 65 hours of training specific to legal interpreting and a minimum of 50 hours of mentoring pursuant to the Legal Auxiliary Services Handbook to attain a Status II designation.

- ii. Interpreters from out-of-state who are experienced in court/legal settings but are new to the Colorado State Court System are eligible to attain a Status II designation by demonstrating that they have sufficient experience in court/legal settings, have completed a minimum of 65 hours of training specific to legal interpreting, and have completed a minimum of 50 hours of mentoring. They must complete a Legal Auxiliary Services orientation and a minimum of 20 hours of successful teaming with current Colorado Status I and II Court/Legal Interpreters prior to being granted Status II, pursuant to the Legal Auxiliary Services Handbook. Exceptions may be made on a case-by-case basis.
 - 2) Maintenance of Status II designation: interpreters in this category must maintain current certification and complete 4.0 (40 clock hours) of Continuing Education Units (CEUs) in legal and/or court-related topics during their CEU cycle(s), pursuant to the Legal Auxiliary Services Handbook. The 4.0 of legal and/or court-related CEUs must be approved as such by the certification body.
 - 3) Moving from Status II to Status I: interpreters holding a current Status II designation may apply for a Status I designation upon meeting the Status I certification requirements, pursuant to the Legal Auxiliary Services Handbook.
3. Status III: Communication Assistants
- Communication Assistants may or may not have formal training or certification but have experience with the unique communication needs of a particular deaf, hard of hearing, or deafblind individual (for example, foreign sign languages, home sign, deafblind-specific communications, etc.). Communication Assistants may be assigned on a case-by-case basis and shall only work under the supervision of a Status I or Status II Court/Legal Interpreter. All on-the-record interpreting shall come from Status I or II Court/Legal Interpreters
4. Status IV: Community Interpreters
- Interpreters for court-ordered treatment or therapy must hold current (a) RID certification, (b) one of the following BEI certifications: Advanced, Master, Court Interpreter, Trilingual Advanced, Trilingual Master, Medical Interpreter, Level IV Intermediary, or Level V Intermediary, or (c) successor certification.
5. Non-resident court/legal interpreters: RID certified interpreters, BEI Advanced, Master, Intermediary certified interpreters, or successor certifications from out-of-state who are experienced in court/legal settings but do not hold a Colorado Status I or II Court/Legal Interpreter designation are eligible to interpret in the State Court System and other court/legal settings for up to 14 days per calendar year without a Status I or II designation. Exceptions to the 14-day period may be granted by LAS on a case-by-case basis. Non-resident court/legal interpreters shall work only under the supervision of a Status I or II Court/Legal Interpreter.
- Non-resident court/legal interpreters in this category must demonstrate that they have sufficient experience in court/legal settings and successfully complete pre-assignment orientation and preparation with the assigned interpreting team, pursuant to the Legal Auxiliary Services Handbook.

6. After-hours/weekend/holiday court and law enforcement requests: virtual interpreting services may be provided by a pre-approved agency to law enforcement and the Colorado State Court System in situations requiring immediate interpreting services, pursuant to the Legal Auxiliary Services Handbook. Interpreters must hold either: (1) a current RID SC:L, BEI Court Interpreter, or successor certification, or (2) a current RID certification or BEI Advanced, Master, or Intermediary certification, or successor certification and have completed a minimum of 20 hours of current legal interpreting training.

B. CART Providers

1. A Communication Access Realtime Translation ("CART") provider is a trained professional who provides live, immediate captioning from speech to text for deaf, hard of hearing, and deafblind consumers to provide communication access. The text appears on a computer or other screen or display. The CART provider also provides environmental cues to the consumer, such as phones ringing, laughter, door slamming, etc. CART is also referred to as real-time captioning, and live captioning.
2. Pursuant to the Legal Auxiliary Services Handbook, to attain an initial Status I or II Court/Legal credential, CART providers must:
 - a. Hold a current Certified Realtime Captioner (CRC) designation, or meet each of the following criteria:
 - 1) Have graduated from an accredited court reporting program.
 - 2) Have a minimum rate of 98% accuracy at 225 words per minute for captioning work.
 - 3) Have two years of general CART experience post-graduation and a minimum average of 20 hours of CART services per week for each of the most recent two years of CART work. Exceptions will be reviewed on a case-by-case basis.
 - b. Successfully complete a minimum of six hands-on assignments in the State Court System, as supervised by a current Status I or II CART Provider and approved by Legal Auxiliary Services (LAS).
 - c. Complete an orientation provided by LAS.
3. CART Providers will be designated as:
 - a. Status I if they hold a current Certified Realtime Captioner (CRC) designation and meet the requirements listed in section 2.

Status I providers will be eligible to cover all court/legal LAS assignments where the consumer is a party to the case.
 - b. Status II if they meet the requirements listed in section 2 but do not hold a current CRC designation.

Status II providers will be eligible to cover all LAS assignments, except trials and hearings with testimony unless approved by LAS or the appointing authority.

- c. Status IV if they meet the requirements listed in section 2(a)(1), (2), and (3).

Status IV providers will not be eligible to cover court/legal assignments but may cover court-ordered treatment or therapy assignments.

- 4. To maintain a Status I or II Court/Legal credential:

- a. CART Providers must:

- 1) Maintain a current CRC designation for Status I.
- 2) Complete a sufficient number of CART assignments, as determined by LAS, within the State Court System within the last year for Status II.

- b. Attend a refresher orientation program if requested by LAS.

- 5. The purpose of CART services is to facilitate communication accessibility in a live format.

CART providers do not provide a record of the proceedings and will not retain or distribute CART notes or print-outs. Court reporters are responsible for providing a verbatim record of the proceedings and persons wanting a transcript can order an official transcript through the courts.

- 6. CART services may be provided onsite or virtually. Every effort will be made to provide optimal communication access. Onsite cart services will be prioritized for trials, jury duty, and hearings with testimony.

C. Cued Language Transliterators

Colorado recognizes Cued Language Transliterators who hold a Transliteration Skills Certificate (TSC) pursuant to section 6-1-707(1)(e)(i)(a), C.R.S., and the rules in section 27.500. Due to a lack of Cued Language Transliterator (CLT) providers with specific qualifications for court and legal settings, LAS will make CLT assignments on a case-by-case basis upon consultation with a provider that has expertise in CLT training and practice.

27.240 RESPONSIBILITIES OF STATUS I AND II PROVIDERS

All Status I and II Auxiliary Service Providers shall abide by the following responsibilities for court and legal settings:

- A. Identify their LAS-issued credential and number.
- B. Prepare for the assignment by contacting the appointing authority and reviewing case information in advance and arriving at the assignment early to be able to assess the consumer's needs and establish effective communication.
- C. Take an oath as directed by the presiding authority regarding the full and complete provision of interpreting or CART services to the best of the provider's ability.
- D. Make all necessary disclosures, on the record, about any perceived need for disqualification or acknowledging conflict of interest as being the sole holder of relevant information.
- E. Take the necessary steps to promote effective communication, including ensuring proper set-up onsite or online.

- F. Correct errors either on the record, or by notifying each party as soon as is practical.
- G. Facilitate effective communication between deaf, hard of hearing, or deafblind individuals and their attorneys only when attorney-client privilege has been extended for the Auxiliary Service Provider.
- H. Abide by LAS policies and procedures as outlined in the Legal Auxiliary Services Handbook, including following applicable codes of professional conduct.

27.241 RESPONSIBILITIES OF AUXILIARY SERVICE PROVIDERS FOR JURORS

Pursuant to 13-71-137, C.R.S., the following responsibilities apply to Status I and II Auxiliary Service Providers:

- A. Provide effective communication during a trial for a juror who is deaf, hard of hearing, or deafblind.
- B. Make true and complete translations and interpretations of all court proceedings to the best of the provider's ability.
- C. Abide by the same orders and admonitions given to the jurors.
- D. Refrain from participating in any manner in the deliberation of the jury or having any communications with any member of the jury regarding deliberation, except as necessary for true and complete translations of jurors' remarks made during deliberation.

27.250 COMPENSATION, PAYMENT, AND REIMBURSEMENT

- A. The amount of compensation shall be based on a fee schedule for Auxiliary Service Providers established by the Commission through LAS, subject to appropriations.
- B. Funds are available for attorney-client communications only when such communications are an extension of a court appearance (i.e., immediately before or after the appearance).

27.260 COMPLAINT PROCESS

Consumers and service providers may file a complaint regarding LAS services. A "complaint" is an expression of dissatisfaction on matters such as the quality of services provided or a decision regarding an Auxiliary Service Provider's Status. A complaint must be filed within 45 calendar days of the date of the incident.

LAS staff shall resolve complaints using simple, non-adversarial procedures adopted by the Commission. If appropriate, Auxiliary Services Providers will be informed of a complaint about their services and given an opportunity to respond before LAS staff make a decision on the complaint. Any party who is dissatisfied with the resolution of a complaint may appeal the decision per the procedures to be adopted by the Commission. The Department's Executive Director and/or designee shall have final decision-making authority on the complaint.

27.270 TRAINING AND TECHNICAL ASSISTANCE

LAS will collaborate with Commission staff to provide training and technical assistance for identified Judiciary, law enforcement and prosecutorial personnel, auxiliary services providers, and consumers regarding compliance with relevant regulations, policies, and procedures.

27.280 AUXILIARY AIDS AND DEVICES

LAS will coordinate the purchase, shipment, and receipt of Assistive Listening Devices and systems for the State Court System according to applicable state rules pursuant to section 26-21-106(4)(d), C.R.S.

27.290 AUXILIARY SERVICE ADVISORY COUNCIL

- A. LAS shall convene a five-member advisory council. Membership shall consist of the following: three Status I or II Court/Legal Interpreters (at least one deaf and one hearing), one CART provider, and one member of the public.
- B. The council shall meet at least two times per year to consult with LAS staff and make recommendations. The council may expand its membership or establish issue-specific work groups as needed for rulemaking.
- C. Term limits of the Legal Auxiliary Service Council members shall be determined by the Commission.

27.300 RURAL COMMUNICATION ACCESS SERVICES PROGRAM

The Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind administers the Rural Communication Access Services (RCAS) program to provide access to effective communication for deaf, hard of hearing, and deafblind individuals in rural areas of the state. RCAS services include providing information, referrals, and qualified communication access services (e.g., sign language interpreters, realtime captioners, cued language transliterators). RCAS also provides communication access provider training and scholarships for people who are willing to accept assignments in rural areas.

Under the Americans with Disabilities Act (ADA), state and local governments, and businesses and non-profit organizations that serve the public must communicate effectively with people who are deaf, hard of hearing, and deafblind. However, there are relatively few sign language interpreters and realtime captioners available in rural communities.

Although entities in rural areas are ultimately responsible for complying with the ADA, the RCAS program is a tool to assist such entities by providing information on providers who are willing to take assignments in rural areas. The program also has limited funding to arrange and pay for communication access services for eligible rural entities. The goal of the program is to remove communication barriers in rural communities to the benefit of everyone. These rules implement the provisions of section 26-21-106(9), C.R.S.

27.310 DEFINITIONS

"Access to effective communication" means those methods of communication that are individualized, culturally appropriate, and appropriate to the nature, length, complexity, and context of the situation as well as the person's normal method(s) of communication.

"Auxiliary Services" means those aids and services that assist in effective communication with a person who is deaf, hard of hearing, or deafblind pursuant to section 13-90-202(3), C.R.S.

"Business or nonprofit organization that serves the public" means a public accommodations entity that is required under Title III of the Americans with Disabilities Act to take steps necessary to communicate effectively with deaf, hard of hearing, and deafblind customers.

"Commission" means the Colorado commission for the deaf, hard of hearing, and deafblind in the department of human services created in section 26-21-104.

“Communication access services” includes qualified/certified sign language interpreting, realtime captioning (CART), cued language transliteration, and other services.

“Communication access services providers” include approved qualified/certified sign language interpreters, Communication Access Realtime Translation (CART) captioners, cued language transliterators, and other providers. Providers may be commission interpreting staff or vendors.

“Consumer” means all parties (deaf, hard of hearing, deafblind, or hearing) receiving services in rural areas. Consumers must be a state or local government; a business or nonprofit organization that serves the public; or a deaf, hard of hearing, or deafblind person.

“Deaf, hard of hearing, or deafblind” means a person who has a functional hearing loss of sufficient severity to prevent aural comprehension, even with the assistance of devices such as hearing aids, pursuant to section 13-90-202(6), C.R.S. Hearing aids include cochlear implants. DeafBlind individuals exist on a continuum, ranging from no vision and/or hearing to varied combinations of usable hearing and/or vision, that presents difficulty in routinely accessing information.

“Effective Communication” means those methods of communication that are individualized and culturally appropriate to a person who is deaf, hard of hearing, or deafblind so that he or she can easily access all auditory information pursuant to section 13-90-202(7), C.R.S.

“Qualified interpreter” means a person who has a valid certification of competency accepted by the commission and includes, but is not limited to, oral interpreters, sign language interpreters, and intermediary interpreters pursuant to section 13-90-202(8), C.R.S.

“Rural area” is defined in section 27.320.

“State or local government” means a public entity that is required under Title I of the Americans with Disabilities Act to take steps necessary to communicate effectively with deaf, hard of hearing, and deafblind persons. Primary consideration must be given to the type of auxiliary aid or service requested by the person with a disability.

27.320 PROGRAM DEFINITION OF “RURAL AREA”

For the purposes of the program, “rural area” is defined as:

1. A Colorado county with a population of fewer than 250,000 people, or
2. A Colorado city, town, or unincorporated area within Adams, Arapahoe, Boulder, Broomfield, Denver, Douglas, El Paso, Jefferson, Larimer, and Weld counties where:
 - a. The number of local qualified/certified communication access services providers is insufficient to meet the needs of the consumers in the community due to geographic barriers, and/or
 - b. Requests for communication access are unfilled due to geographic barriers and the need for more readily available service providers.

Requests for exceptions to the above criteria may be reviewed by the program on a case-by-case basis. The definition of “rural area” will be reviewed by the program every three years with input from the Rural Communication Access Services Advisory Council (RCASAC). In addition, county population data will be reviewed every ten years when updated census data becomes available.

27.330 INTAKE, REFERRAL INFORMATION, AND COMMUNICATION ACCESS SERVICES

On a case-by-case basis, the program will conduct a personalized intake process for each consumer to assess their needs and tailor services to their needs. The program will provide information and resources, and, if requested, schedule and pay for communication access services if resources permit.

- A. The program shall establish, publish, and monitor/maintain a list of CART captioners and sign language interpreters who are willing to work in rural areas. This information is publicly available on the Commission's website: <https://ccdhhdb.colorado.gov/>.
- B. For requests regarding communication access services scheduling, staff will review how to fill out the online request form to ensure completeness of information and explain the program's policies, including how to modify or cancel requests, information on best practices for communication access and resources, and the possibility of sign language interpreting students or apprentices being present and working with certified interpreters.
- C. The program has full-time staff sign language interpreters to assist with filling service requests in rural areas. The program also has allocated funding each year to cover the cost of services, travel time, mileage, and per diem/lodging for vendors. Each fiscal year, the program will divide the funding allocation into twelve months and determine a monthly budget for payment of vendor services. If a given month's expenditures reach 75% to 85% of the monthly allocation, the program will prioritize court and legal, health and wellness, and employment-related requests to conserve resources. The program may make exceptions on a case-by-case basis.

27.340 QUALIFICATIONS OF COMMUNICATION ACCESS SERVICES PROVIDERS

Communication access services providers must meet state and commission requirements to provide sign language interpreting, CART captioning, or cued language transliteration services.

- A. The commission's requirements for sign language interpretation and cued language transliteration are found in Rule 27.500.
- B. The requirements for sign language interpreters and realtime captioners are found in Rule 27.230.

Vendors must meet the paperwork requirements of the State of Colorado. This information is posted on the commission website: <https://ccdhhdb.colorado.gov/>.

27.345 RESPONSIBILITIES OF COMMUNICATION ACCESS SERVICES PROVIDERS AND VENDOR COMPENSATION

Providers (interpreting staff and communication access services vendors) shall abide by the following responsibilities:

- A. Be prepared to show proof of certification or other credentials.
- B. Abide by professional standards and codes of conduct.
- C. Adhere to the highest ethical standards.
- D. Prepare for the assignment in advance by contacting the relevant party/parties for assignment information.
- E. Make travel arrangements or establish buffers between virtual assignments to allow on-time arrival for an assignment.

- F. Arrive early enough to an assignment to be able to assess the deaf, hard of hearing, and deafblind consumer's needs in establishing effective communication.
- G. Take the necessary steps to promote effective communication, including ensuring proper set-up onsite or online.
- H. Abide by RCAS policies and procedures.
- I. Submit accurate and timely invoices, with all assignments invoiced within the applicable state fiscal year (July 1 to June 30).

Vendors will be asked to inform consumers that the RCAS program arranged and paid for their services. Vendors also will be asked to give RCAS materials (such as a business card) to rural consumers for each assignment whenever appropriate. These activities will make RCAS's impact transparent and act as a reference tool for new requests.

The amount of vendor compensation shall be based on the vendor agreement and fee schedule established by the commission. Vendors shall be compensated only for assignments that were confirmed in advance by the RCAS program.

27.350 PRIORITIZATION OF COMMUNICATION ACCESS SERVICES REQUESTS

The program does not prioritize incoming communication access services requests. However, in times of funding limitations, the program will resort to prioritizing requests for the most basic human needs, such as requests relating to medical/behavioral health, employment-related, and court/legal situations. This prioritization is applied as a last resort plan.

RCAS shall arrange and pay for communication access services in rural areas of Colorado as long as funding is available to do so. A deaf, hard of hearing, or deafblind consumer must be present onsite or virtually for the proceeding, event, or circumstance. When scheduling services, the program will consider the nature, length, complexity, and context of the request and the frequency of the need for services.

RCAS will not arrange communication access services for federal or state agencies or entities; (pre) K to grade 12 student-related academics or activities except for Individualized Education Program (IEP) meetings; post-secondary academics or environments; or personal events such as weddings, parties, or family gatherings.

Additionally, RCAS will not cover services requested by out-of-state entities.

- 1. RCAS Services are available in rural areas of the state. The request must involve providing communication access in a rural area to a deaf, hard of hearing, or deafblind individual, regardless of whether that person resides in or is visiting that rural area.
- 2. Communication access services may be provided in person, virtually, or a hybrid of in-person and virtual. RCAS staff shall make the final determination on whether communication access services will be provided in person and/or virtually.
- 3. RCAS services may be suspended or terminated for repeated misuse or abuse of program resources, including but not limited to multiple no-shows or short-notice cancellations.
- 4. During times of fiscal constraint, service requests will be prioritized with court and legal settings, health and wellness appointments, and employment-related events being of the highest priority. On a case-by-case basis, shorter requests will be prioritized over lengthier (e.g., half-day, full day, or multiple day) requests.

5. The RCAS program is charged with increasing the number of qualified communication access services providers available in rural areas of the state. Thus, vendors on RCAS assignments may be accompanied by sign language interpreting students and apprentices. The program will inform consumers in advance whenever possible.

27.360 TRAINING AND SCHOLARSHIP OPPORTUNITIES

The RCAS program sets aside a portion of its funding each year for the training of communication access services providers. To be eligible for RCAS-sponsored training and scholarship, the training program must be aligned with RCAS program goals. In addition, the person must meet the requirements of the specific training or scholarship program; be willing to take assignments in rural areas; and, once qualified or certified, become an active RCAS program vendor and accept a minimum of five assignments per year (with RCAS or not) in rural areas for two years.

RCAS interpreting staff provide ongoing sign language interpreting workshops at professional conferences and other locations. Information about training and scholarship programs is posted on the commission website.

27.370 PROGRAM OUTREACH

The RCAS program conducts outreach to rural consumers and potential vendors. Staff provide education on the ADA, communication access services, resources, and how to use the program. When appropriate, program staff will request that rural consumers credit the program for providing communication access services and provide contact information for RCAS. This will make the program's impact transparent and act as a reference tool for new requests.

The commission will provide educational and program materials in accessible and diverse formats, such as short videos with voice-over, captions, and sign language, and business cards or brochures. Program staff will track outreach efforts and utilize the data in modifying and improving outreach efforts.

27.380 COMPLAINT PROCESS

Consumers and vendors who are unhappy with the services provided are strongly encouraged to address the situation with the other party or parties first. If the parties are unable to resolve the complaint to satisfaction amongst each other, the parties may contact the RCAS program for assistance. If there is a need to escalate the complaint or the complaint involves the program itself, the person may file a complaint via the Department of Human Services' Client Services as found on the Department's website: <https://cdhs.colorado.gov/contact-cdhs>.

27.390 RURAL COMMUNICATION ACCESS SERVICES ADVISORY COUNCIL

- A. The RCAS program shall convene a five-member advisory council. Membership shall consist of the following: two rural consumers who use or are familiar with RCAS services; two communication access services vendors who take assignments in rural areas; and one member of the public.
- B. The council shall meet at least two times per year to consult with RCAS program staff and make recommendations. The council may expand its membership or establish issue-specific workgroups as needed.
- C. Term limits of the Rural Communication Access Services Advisory Council shall be determined by the commission.

27.400 GRANT PROGRAM

The Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind provides funding, as appropriated by the General Assembly and after considering the recommendations made by the Grant Program Committee, for local government, state agencies, state-operated programs, or private nonprofit or not-for-profit organizations to address priorities of the deaf, hard of hearing, and deafblind community.

27.410 DEFINITIONS

“Auxiliary services” mean those services defined in Section 26-21-103(1), C.R.S.

“Commission” means the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind (CCDHHDB), as referenced in Colorado Revised Statutes, Title 26, Article 21.

“Commissioners” means members appointed by the Governor to serve on the Commission, pursuant to Section 26-21-104, C.R.S.,

“Committee” means the Grant Program Committee authorized pursuant to Section 26-21-107.7(1)(a.5)(I), C.R.S.

“Entity” means a local government, state agency, state-operated program, or private nonprofit or not-for-profit organization.

27.420 GRANT PROGRAM COMMITTEE

The Commission shall convene a five-member committee consisting of members, including the director of the Commission as an ex-officio member, who have knowledge and awareness of innovative strategies that address challenges of the deaf, hard of hearing, and deafblind community.

- A. The Commission shall provide information to the general public about the establishment of the committee and the process for interested persons to apply to become a committee member.
- B. The Commission shall screen the candidates for the Grant Program Committee positions and make recommendations to the Commissioners for approval.
- C. Membership of the committee shall be comprised of four appointed members, as described in Section 26-21-107.7(1)(a.5)(II), C.R.S., in addition to the Commission director serving as an ex-officio member of the committee.
 - 1. The members shall serve a three-year term, with the original members' terms staggered pursuant to Section 26-21-107.7(1)(d), C.R.S.
 - 2. The individual staggered term limits shall be determined by the Commissioners.
- D. This committee shall meet to review applications and make recommendations to the Commission for approval, with recommended grant amounts, or disapproval of applications and advise the Grant Program.
- E. The Commission shall share the committee's recommendations with the Commissioners for their review and feedback.
- F. The committee shall make recommendations to the Commission to determine distribution of the amount(s) up to the total amount of money appropriated for this purpose when needed.

27.430 PURPOSE OF GRANT

The purposes of the grant awards shall be to address priorities of the deaf, hard-of-hearing, and deafblind community, including, but not limited to, the following projects:

- A. Access to communication or environmental information where auxiliary services and aids are made available;
- B. Community planning to improve coordination and access to services (e.g., involvement of the community stakeholders to conduct an environmental scan, gap analysis, priority setting and strategic planning of any program);
- C. Start-up programs that the state lacks;
- D. Support for existing services and programs;
- E. Other projects that meet the overall purpose of the grant program as determined by the committee.

27.440 GRANT APPLICATION PROCESS

Applications shall be submitted on a form provided by the Commission and shall include:

- A. Letter of interest submitted by the governing body of the entity;
- B. The mission statement of the entity that reflects support of the purposes underlying the grant program;
- C. Documentation of appropriate legal status or standing as a private nonprofit or not-for-profit agency or corporation as required by Federal or Colorado law, if the entity is a non-governmental agency;
- D. A list of a functioning board of directors or advisory committee, which provides oversight and governance if applicable or the organizational structure of the government agency;
- E. Concisely written grant proposal that sets forth, at a minimum, the objective(s) to be achieved in accordance with the purpose of the grant, the community need that the grant proposal addresses, the timeline for achieving the objective(s) and the measurable outcomes to be met;
- F. Letters of support from three (3) entities;
- G. The proposed budget, tied to activities and outcomes and, if required by the application instructions, fifty percent (50%) of match and source(s) committed and its narrative;
- H. A certified copy of latest fiscal audit/financial review if the applicant is an established program, and/or a plan to manage the grant if the entity is newly created; and,
- I. A copy of the entity's Equal Employment Opportunity (EEO) statement.

27.450 TIMELINES AND SELECTION CRITERIA

- A. The grant program application timeline shall be:
 - 1. May 1: Distribution of the grant application;

2. June 30: Deadline for final applications;
 3. July 31: Review and approval or disapproval of the applications by the committee and submittal of the recommendations to the Commission; and,
 4. September 1: After considering the recommendations of the committee, announcement of the grant recipient(s) by the Commission will be made through a public electronic newsletter or at a regular or special meeting
- B. Grant Applications will be reviewed and selected according to the following:
1. Completion of all application requirements;
 2. Assurances of matching funds readily available or committed when required by the application;
 3. Demonstration of fiscal and programmatic management capability as evidenced by operating experience, audit or financial review as appropriate, or a plan of grant management if the agency is newly created;
 4. Cost of the project compared to other projects, including indirect costs not to exceed 20 percent (20%) of the total budget;
 5. A demonstrated community priority, which the grant proposal addresses;
 6. Demonstration of community support as evidenced by direct community contributions, a volunteer component, and letters of support from other community agencies; and,
 7. The availability of grant funds for the project.

27.460 DISPUTE RESOLUTION PROCESS

In order to resolve disputes between the Commissioners and committee, the Commission shall adopt procedures for the resolution of disputes consistent with this section. The procedures shall be designed to establish a simple and non-adversarial format for the resolution of disputes. If, after following the dispute resolution process defined by the Commission, the Commissioners disagree with a recommendation of the committee, the Department's Executive Director shall have final decision-making authority to approve or disapprove the application and to set grant amounts.

27.470 CONTRACTUAL AUTHORITY

All successful grant recipients must be willing to enter into a contractually binding agreement as prescribed by the Department and the State of Colorado Fiscal Rules. Adherence to confidentiality laws and proof of insurance are required if the recipient intends to provide direct services to clients through the grant proceeds.

27.480 REPORTING

Each grantee shall be responsible for the maintenance and reporting of any required specifications as outlined in the grant report guidelines, as found on the Commission's website;
<https://ccdhh.com/index.php/grant-program/>.

27.500 CERTIFICATION/CERTIFICATE FOR SIGN LANGUAGE INTERPRETATION AND CUED LANGUAGE TRANSLITERATION

In addition to section 6-1-707(1)(e)(I)(A), C.R.S. where it identifies the Registry of Interpreters for the Deaf certifications, the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind is authorized by section 6-1-707(1)(e)(I)(B), C.R.S. to review and validate certifications and certificate pertaining to the sign language interpretation and cued language transliteration to consumers who are deaf, hard of hearing, deafblind, and hearing.

27.510 DEFINITIONS

“Board for Evaluation of Interpreters” or “BEI” means the program operated by The Office of Deaf and Hard of Hearing under Texas Department of Health and Human Services which tests and certified individuals in sign language interpretation.

“Certification” or “Certificate” means an official document attesting to a status or level of achievement that is generally recognized and accepted by a profession and governed by an independent party.

“Certified Deaf Interpreter” (CDI) means an individual who is deaf or hard of hearing and who has been certified to provide an accurate interpretation between English and variants of sign language and other foreign sign languages by acting as an intermediary between the deaf, hard of hearing, or deafblind individual and the interpreter who can hear.

“Commission” means the Colorado Commission for the Deaf, Hard of Hearing, and DeafBlind.

“Intermediary” means effective communication between the sign language interpreter with the natural language of spoken English and the deaf, hard of hearing, or deafblind (DHDBB) consumer with the natural language of American Sign Language (ASL) is being facilitated by a deaf or hard of hearing person with a natural language of ASL when there is a disconnect between the natural language of the “hearing” interpreter and the natural language of the DHHDB consumer.

“Sign language interpretation” means the process of translating between a spoken Language and a signed language.

Testing, Evaluation, and Certification Unit” or “TECUnit” means the national certifying body for cued language transliterators and testing organization for cued language.

“Transliteration” means the process of moving messages between different forms of the same language, as occurs between spoken English and cued English.

“Trilingual” means a person who communicates in three languages fluently, e.g. Spanish, English, and American Sign Language.

27.520 CERTIFICATIONS AND CERTIFICATE

The Commission identified the following BEI certifications:

- A. Basic,
- B. Advanced,
- C. Master,
- D. Court Interpreter,
- E. Trilingual Advanced,
- F. Trilingual Master,
- G. Medical Interpreter,

- H. Level III Intermediary,
- I. Level IV Intermediary,
- J. Level V Intermediary, or
- K. a successor certification, such as BEI CDI, and

TECUnit certificate:

- A. Transliteration Skills Certificate (TSC)

as valid and reliable.

Editor's Notes

History

Add rules 27.200-27.300 eff. 11/01/2007.
Rules 27.100-27.191 eff. 04/01/2008.
Entire rule eff. 04/01/2010.
Rules 27.400-27.480 eff. 05/01/2010.
Rules 27.400-27.480 eff. 06/30/2019.
Rules 100-190 eff. 07/30/2019.
Rule 27.130 F emer. rule eff. 02/07/2020.
Rules 27.100, 27.400 eff. 03/01/2020.
Rule 27.130 F eff. 04/30/2020.
Rule 27.230 emer. rule eff. 11/06/2020.
Rule 27.130 F emer. rule eff. 02/05/2021.
Rule 27.230 eff. 03/02/2021.
Rule 27.410 eff. 04/01/2021.
Rule 27.130 F eff. 04/30/2021.
Rules 27.500, 27.510, 27.520 eff. 09/30/2021.
Rule 27.130 F emer. rule eff. 02/04/2022.
Rule 27.130 F eff. 05/30/2022.
Rule 27.400 eff. 07/31/2022.
Rule 27.200, rule 27.300 renumbered to 27.290 eff. 08/30/2022.
Rule 27.130 F emer. rule eff. 02/03/2023.
Rule 27.130 F eff. 05/30/2023.
Rule 27.130 F emer. rule eff. 02/09/2024.
Rule 27.130 F eff. 04/30/2024.
Rules 27.300-27.390 eff. 05/31/2024.